



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 26, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100688 regarding Police Officer Gregory Scott, Tax No. 961263 (DADS No. 2022-26484), Police Officer Tyler Hanson, Tax No. 966611 (DADS No. 2022-26485), and Police Officer Bryan Scheblein, Tax No. 955457 (DADS No. 2022-26487)

Dear Mr. Darche:

In this matter the CCRB substantiated allegations of failure to offer a business card against Police Officers Hanson, Scott and Scheblein. The CCRB also substantiated an allegation of improper search against Police Officer Hanson and an allegation of discourtesy against Police Officer Scheblein. The allegations all stemmed from the same incident involving the stop of the complainant in this matter, who was suspected to be carrying a firearm.

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the failure of Police Officer Hanson and Police Officer Scott to offer business cards was not intentional misconduct. Police Officers Scott and Hanson stated that the complainant was offered a "receipt" from Police Officer Scheblein at the end of their interaction, which they interpreted to have the same meaning as a business card. Thus, both

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Police Officers Hanson and Scott would benefit from receiving training on the Right to Know Act business card requirements, which is the mitigated penalty under the Disciplinary Penalty System Guidelines.

Additionally, Police Officer Hanson was found to have conducted an improper search of the complainant's left pocket after the complainant stated, "Wanna Check?" It should be noted that the CCRB investigator was unable to determine whether the complainant provided consent to search all his pockets or was only referring to his right pocket, which was searched by Police Officer Scott. Since the complainant's statement was unclear, Police Officer Hanson could have requested that the complainant clarify whether a search was consented to or not. After reviewing the available video evidence, it was determined that Police Officer Hanson would benefit from training regarding conducting a search of a person, which is the mitigated penalty under the Disciplinary Penalty System Guidelines, especially in light of the fact that the CCRB investigator could not determine the meaning of the complainant's statement.

Lastly, the Police Commissioner agrees with the CCRB regarding the findings and penalty recommendation of a Schedule "A" Command Discipline against Police Officer Scheblein. Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Scott and Police Officer Hanson will receive formalized training and Police Officer Scheblein will be issued a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'LSoto', is written over the printed name.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office